

25LBCP00487 25LBCP00487

County: los-angeles

Division: Civil Law and Motion

Department: S27

Hearing date: 2026-08-04

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LB%20%2CS27%2C08%2F04%2F2026

Source SHA-256: a06776d95e32f2fe1af72609ecfe1cfda183f707cae535197074612c721c4eb3

Case Number: 25LBCP00487 Hearing Date: August 4, 2026 Dept: S27

1. Basis of Dispute

Petitioner and Respondent are
involved in underinsured motorist arbitration.

Petitioner is seeking to recover his damages in excess of \$250,000
sustained in an automobile accident with a driver who had a \$250,000 limit
policy and no other meaningful assets.

2. Motions to Compel

a. Procedural History

On 5/01/25, the Court continued the
hearing on these motions, ordering the parties to meet and confer and to file a
joint statement if issues remained outstanding.

The Court heard the motion again on 5/21/26, prior to which time it
issued a tentative ruling indicating it had not received a joint statement or
any other briefing, so it was taking the motions off calendar as moot.

The parties had filed a joint
statement on 5/20/26, only one day prior to the 5/21/26 hearing, and the Court
had not received the statement. The
Court therefore continued the hearing a second time and indicated it would
review all papers filed in connection with the motion.

b.

Merits

Petitioner propounded

interrogatories and inspection demands on Respondent on 10/08/25. Responses were due on or before 11/11/25. Respondent did not serve timely responses, and on 4/06/26, Petitioner filed these motions to compel.

As an initial note, there were only

two motions filed. The notices of motion

indicate the motions seek responses to FROGs and RPDs. The points and authorities with the FROG motion

details the service and lack of response to FROGs. The points and authorities with the RPDs

motion, however, discusses SROGs and RPDs, rendering it confusing. The Court presumes FROGs and RPDs only are at issue on these two motions, as they are the only discovery devices for which

Petitioner seeks responses in the notices of motion, despite mentioning SROGs

and RFAs. To the extent issues relating

to SROGs and/or RFAs exist, the Court advises the parties that its ruling would

not likely be altered as to these other discovery devices, and asks the parties

to resolve the issues without the need for further law and motion practice.

Respondent, in opposition to the

motions, concedes it did not timely respond to the outstanding discovery. It contends, however, that it communicated

with Petitioner about an ongoing coverage dispute, and that the normal law

governing waiver does not apply because of the threshold coverage dispute. It does not cite any authority to support this position. It does not establish it

formally objected to the discovery on this ground. The Code is quite clear: once discovery is

propounded, the responding party must respond within thirty days or all

objections are waived. CCP §§2030.290,

2031.300. Absent any authority carving

out an exception under the circumstances presented, the motions to compel are

granted. Respondent must serve responses

to the outstanding discovery, without objections, within ten days.

c. Sanctions

Exhibits A, B, and C to the

opposition establish that Respondent has, at all relevant times, including

before discovery was propounded, been taking the position that there is a

coverage dispute and it is not accepting tender of Petitioner's claim unless and

until umbrella coverage is exhausted.

While the Court ultimately finds Respondent waived its objections to the subject discovery by failing to timely respond, the Court also finds Respondent acted with good cause and substantial justification in light of the ongoing coverage dispute. No sanctions are imposed.

3. Petition not Complaint

This action was filed as a petition to obtain a case number for purposes of resolving underinsured motorist discovery disputes. The Court vacates the 2/05/27 FSC and 2/08/27 trial dates, as such dates are not appropriately calendared in connection with an underinsured motorist arbitration proceeding.

If no further discovery issues remain between the parties, the Court will dismiss this summary discovery proceeding at the conclusion of the CMC.

The parties are reminded that there is a Case Management Conference on calendar concurrently with the hearing on the above motions. The Court asks the parties to make arrangements to appear remotely at the CMC and hearing on the motions. The Court will discuss with the parties whether there are remaining discovery issues at the time of the hearing, and will set an OSC re: Dismissal as a future holding date in the event discovery issues have not been resolved.